NC: 2024:KHC:9885
CRL.A No. 1159 of 2012

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF MARCH, 2024

BEFORE

THE HON'BLE MR JUSTICE MOHAMMAD NAWAZ

CRIMINAL APPEAL NO. 1159 OF 2012

BETWEEN:

SRINIVASA
S/O BORA SHETTY,
AGED ABOUT 67 YERS, MASON,
R/O OFFICIAL COLONY,
K.R.SAGAR TOWN & PERMANENT
R/OF VARKODU VILLAGE,
MYSORE TALUK AND DISTRICT.

...APPELLANT

(BY SRI D S HOSMATH, ADVOCATE)

AND:

STATE BY K R SAGAR
POLICE STATION, K R SAGAR,
MYSORE TALUK & DISTRICT.

...RESPONDENT

(BY SRI VINAY MAHADEVAIAH, HCGP)

Digitally signed by LAKSHMI T
Location: High Court of Karnataka

THIS CRL.A FILED U/S.374(2)OF CR.P.C PRAYING TO SET ASIDE JUDGMENT AND ORDER PASSED BY SESSIONS JUDGE, FTC., SRIRANGAPATNA IN S.C. No.35/2010 DT 30/7/2012 - CONVICTING APPELLANT FOR THE OFFENCE P/U/S.324 & 325 OF IPC.

THIS APPEAL, COMING ON FOR FURTHER HEARING, THIS DAY, THE COURT DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is preferred by the appellant - accused, who has been convicted vide judgment and order dated 30.07.2012 in S.C. No.35/2010 passed by the Sessions Judge, Fast Track Court, Srirangapatna for the offences punishable under Sections 324 and 325 of IPC.

2. Heard and perused the evidence and material on record.

3. Brief facts:

The victim - PW2 is the wife of accused. The couple has two children. Since 11 months prior to the incident, they were residing in a rented house belonging to PW1 - Shivakumar. The accused was a mason by profession. As per Ex.P1 - Complaint lodged by PW1, the couple lived cordially for about one month. Thereafter, the accused quarreled with his wife and went away. He was intending to sell the land situated in Varakodu Village, standing in his name and in the name of his wife - PW2. He was insisting PW2 to put her signature to sell the land, but she had refused.

4. On 07.10.2009, accused came to the house. PW2 secured PW3 - Kaveramma to the house stating that accused is

insisting to put her signature and therefore, she should advice him. Both PW1 and PW3 requested the accused to stay with the wife and children in the same house, but the accused insisted his wife - PW2 to put her signature. PW2 asked the accused to pay a sum of Rs.6 lakhs for her children. On that day, accused stayed in the house and went away on the next day.

5. Accused returned to the house on 11.10.2009 at about 11.30am along with the brother of PW2, by name Nagesh. A verbal quarrel took place between the couple. The accused went inside the kitchen and brought a knife and stabbed PW2 on her hand and other parts of the body causing bleeding injuries. Immediately, PW1 secured the Ambulance and sent the injured PW2 to K.R. Hospital along with PW3 - Kaveramma.

6. It is the case of prosecution that on 11.10.2009 at about 12.30pm,. since PW2, wife of accused did not put her signature and give consent to sell the property situated at Varakodu village, which was in the joint name of accused as well as PW2, with an intention to commit murder, accused

stabbed her with a knife and also fisted on her jaw and thereby committed an offence punishable under Section 307 of IPC.

7. Charge was framed against the appellant - accused for the offences punishable under Sections 324 and 307 of IPC. Learned Sessions Judge after considering the evidence and material on record came to the conclusion that the ingredients of Section 307 of IPC has not been made out. The said finding has become final.

8. PW9 - Venkateshaiah, working as Police Sub-Inspector at KRS Police Station on 11.10.2009 received the Complaint - Ex.P1 lodged by PW1 - Shivakumar. He forwarded the FIR - Ex.P6 to the Court. Thereafter conducted the spot mahazar as per Ex.P2. He visited the K.R. Hospital and recorded the statement of the injured - PW2. Arrested the accused on 12.10.2009 and recorded his voluntary statement marked as Ex.P7. Knife - MO2 was recovered under Ex.P5 - Seizure Mahazar. Further, the clothes of injured - PW2, marked as MO3 and MO4, were seized under Ex.P4 and sent to FSL for examination. The FSL reports are marked as Ex.P10 and P11.

9. PW10 - Dr. M.K. Mahendra, Senior Specialist in K.R. Hospital, Mysore, examined the injured - PW2 on 11.10.2009 at about 2.25pm. He noticed the following injuries:

(1) Swelling present on forehead.
(2) Lacerated wound on tip of nose 1 cm X 1/2 cm.
(3) Lacerated wound over the left forearm, 4cm X 1/2 cm.
(4) Abrasion on upper part of chest on left side.
(5) Complains of loss of tooth, left lower jaw.

10. The wound certificate issued by PW10 is marked as Ex.P12. He has stated that injuries Nos. 2 and 3 can be caused in case of assault by knife and injury No.5 could be caused in case of assault by fist. According to him injury Nos.1 to 4 are simple in nature and injury No.5 is grievous in nature as per Dentist report.

11. PW1 - Shivakumar, in his deposition has stated that PW2 was assaulted by the accused with a knife and injured lost a tooth and become unconscious. Though there is corroboration in so far as assaulting PW2 with knife on her hand, etc., which is stated in Ex.P1, it is not stated in Ex.P1 -

complaint that the injured was fisted by the accused, on account of which she lost a tooth, etc.

12. PW2 - Jyothi, the injured, has deposed that a land measuring 1 Acre 20 guntas, one site and one house in Varakodu Village were in the joint names of her husband and herself. Her husband was seeking her consent to sell the said land, for which she had refused. On 07.11.2009, accused came and insisted her to put her signature and therefore, she secured PW1 and PW3 to the house and informed the matter to them. They advised the accused and on that day accused remained in the house and next day returned to the Village. Again he returned on 11.10.2009 at about 11.30am. She secured her brother (PW4-Nagesh), PW1 and PW3 to the house. The accused insisted her to put her signature to sell the property, for which she refused and asked him to give a sum of Rs.6 lakhs for her children. At that time, accused brought a knife and attempted to stab on her stomach. When she tried to escape, sustained injuries to her hand, chest, etc., Once again, the accused assaulted on her back, nose, etc. and fisted on her face, due to which she lost a tooth and another tooth started shaking. She lost her conscious and regained her conscious

only in the hospital. She has stated that she was in the hospital for a period of four days and gave statement to the Police.

13. PW3 - Kaveramma, is an eye witness along with PW1 and PW4. She has supported the case of prosecution. She has stated about the accused causing injuries to PW2 with knife and also shifting her to KR Hospital for treatment. She has corroborated the version of PW1 and PW2 regarding the motive for the commission of the offence. There is nothing elicited in the cross-examination of the witnesses in so far as the accused causing injuries to PW2 with knife. PW3, who is an eye witness has not stated about accused fisting PW2 on her face and loss of one tooth.

14. PW4 - Nagesh, brother of PW2 has not supported the case of prosecution. Therefore, his evidence is not useful to the case of the prosecution.

15. PW5 - Nagaraju and PW8 - Nagendra, are the Panch witnesses to Ex.P4 under which MO3 & 4 blood stained clothes are recovered. PW5 supported the case of prosecution. PW8 has been treated hostile.

16. PW6 - Manju, is a panch witness to the spot mahazar. PW7 - Vinay, is a panch witness to the recovery of knife (MO2) at the instance of accused. The recovery mahazar is marked as Ex.P5.

17. From the above evidence on record, the prosecution has been able to establish that on 11.10.2009 at about 12.30pm, accused picked up quarrel with his wife PW2 and stabbed her with a knife and caused injuries. In so far as fisting PW2 and loss of a tooth is concerned, the same does not find a place in Ex.P1. PW3, who is an eye witness to the incident, does not speak about the same. It is relevant to refer to the wound certificate, which is marked as Ex.P12 issued by PW10, as per which injury No.5 is 'Complaint of loss of tooth, left lower jaw'.

18. PW10 - Dr. M.K.Mahendra, has examined the injured PW2 immediately after the incident. He has not specifically stated that there was loss of tooth. Injury No.5, is 'complaint of loss of tooth, left lower jaw', was grievous in nature as per Dentist report. The said report has not been produced and marked. The Dentist is also not examined by the

prosecution. Hence, the evidence of PW2 that she was fisted by the accused and on account of which, she lost a tooth, is not corroborated by medical evidence. There is no mention of loss of a tooth in Ex.P1 - Complaint. PW3, an eye witness has also not deposed about it in her evidence. Hence, the accused deserves to be extended the benefit of doubt in so far as the charge levelled against him for voluntarily causing grievous hurt to PW2. The conviction and sentence passed under Section 325 of IPC is therefore, not sustainable and it is liable to the set aside. On an over all appreciation of the material on record, this Court finds sufficient evidence against the accused for convicting him for the offence punishable under Section 324 of IPC.

19. The incident took place in the year 2009. 14 years have lapsed. The accused was aged about 65 years at the time of incident. The trial Court has sentenced him to simple imprisonment for a period of six months for the offence punishable under Section 324 of IPC. The accused was in custody for five months and two days. In the facts and circumstances, the sentence already undergone by him could be held sufficient. Accordingly, the following order:

ORDER

(1) The appeal is allowed in part.;

(2) The judgment and order dated 30.07.2012 passed by the Court of Sessions Judge, Fast Track Court at Srirangapatna in S.C. No.35/2010, in so far as, convicting and sentencing the accused for the offence punishable under Section 325 of IPC is hereby set aside. He is acquitted of the offence punishable under Section 325 of IPC.;

(3) The judgment and order passed by the trial Court convicting the accused for the offence punishable under Section 324 of IPC is confirmed. Sentence imposed by the trial Court for the said offence is modified as under.;

(4) The appellant - accused is sentenced to imprisonment for the period already undergone by him for the offence punishable under Section 324 of IPC.

(5) He is sentenced to pay fine of Rs.2,000/- for the offence punishable under Section 324 of IPC,

which shall be paid to PW2 - Jyothi, as compensation and in default to pay fine, he shall undergo simple imprisonment for a period of 15 days.

SD/-
JUDGE

VK
List No.: 1 Sl No.: 36